

Mohd. Mahmood Siddiqui v. State of U.P. and 3 Others

Allahabad High Court · Division Bench · 21 January 2019 · Writ - C No. 1493 of 2019 · **Writ petition disposed of; petitioner to appear before the Executive Engineer, PuVVNL Allahabad, with a Clause 6.8 representation/objection; officer to hear and decide in accordance with law within fifteen days; recovery under the citation dated 10.10.2018 in abeyance subject to that appearance and the officer's final order; claim not decided on merits**

HEADNOTE

Where a consumer seeks quashing of a recovery citation for electricity dues, and the licensee alleges theft found on spot inspection with a bounced compounding cheque, the writ court will not decide the demand on merits. In the matter of theft the consumer has a remedy under Clause 6.8 of the Electricity Supply Code, 2005 by representation to the Executive Engineer. The writ is disposed of directing personal appearance with the representation/objection; the officer shall hear and decide it in accordance with law within fifteen days; and, subject to that appearance, recovery remains in abeyance pending the officer's final order. A later time-extension order repeated those directions with a fresh appearance date.

FACTUAL SUMMARY

Mohd. Mahmood Siddiqui challenged a recovery citation dated 10 October 2018 for Rs. 5,69,763 towards electricity dues. He asserted that he had paid the entire bill up to 2018. Counsel for the distribution licensee (Purvanchal Vidyut Vitran Nigam Limited, Allahabad) stated that he had run a vehicle-parts shop since 2014; a spot inspection found theft of electricity; a compounding bill was issued; and a cheque dated 26 July 2014 for Rs. 40,000 (IndusInd Bank, no. 473845) given against those charges bounced, so the claim of full payment was false.

The Division Bench disposed of the writ on 21 January 2019 by sending him to the Executive Engineer, Electricity Distribution Division, Mayohall, Civil Lines, Allahabad. A time-extension application was later allowed on 6 December 2019, fixing a fresh personal-appearance date of 13 December 2019, with the same stay of recovery pending the officer's decision.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

theft recovery — Clause 6.8 representation to the Executive Engineer; writ not decided on merits; recovery in abeyance

QUESTION

Does a consumer challenging a recovery citation for electricity dues alleged to arise from theft have a Clause 6.8 remedy so that the writ need not be decided on merits?

HOLDING

Yes. In the matter of theft the petitioner has a remedy under Clause 6.8 of the Electricity Supply Code, 2005 by approaching the Executive Engineer with a representation. No useful purpose is served in keeping the writ pending. If the petitioner appears personally with a certified copy of the order and his representation/objection, the Executive Engineer shall afford a hearing and decide the representation/objection in accordance with law within fifteen days; subject to that appearance, recovery under the citation dated 10.10.2018 remains in abeyance and is subject to the officer's final order. The Court did not adjudicate the claim on merits. ¶ 4-8

QUALIFIER

The Court treated the alleged theft as remediable under Clause 6.8 without deciding whether the demand was a theft assessment under Clauses 8.1–8.2 or unauthorised use under Clause 6.8.

FLAG Source PDF concatenates listings of 18.1.2019 (put up as fresh on 21.1.2019) and 29.11.2019 (passed over on illness slip) with this 21.1.2019 disposal and a 6.12.2019 time-extension of the same directions (fresh appearance 13.12.2019). The 21.1.2019 order is unnumbered; paras 1–8 are sequential blocks of that disposal from 'The petitioner in the writ petition'. Licensee alleged theft (spot inspection; compounding charges; bounced cheque); the Court keyed the

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 The writ against the 10.10.2018 recovery citation was disposed of because, in the matter of theft, the consumer had a Clause 6.8 remedy by representation to the Executive Engineer; the claim was not decided on merits. ¶ 4-8

assessment-6.8-alternate-remedy Challenge to recovery of Rs. 5,69,763 was left to a Clause 6.8 representation/objection before the Executive Engineer, to be heard and decided in accordance with law within fifteen days. ¶ 4, 6

pending-objection-to-theft-assessment-6.8 The licensee characterised the demand as theft found on spot inspection. The Court nonetheless channelled the consumer to a Clause 6.8 representation, with recovery in abeyance pending the officer's final order. ¶ 3-7

para-6.8-objection-alternate-remedy The petitioner was directed to appear personally with his representation/objection under Clause 6.8; the Executive Engineer was to hear and decide it in accordance with law. ¶ 4, 6

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay Subject to personal appearance with the representation/objection, recovery under the 10.10.2018 citation was kept in abeyance to abide the Executive Engineer's final order on that representation. ¶ 6-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD PAID THE BILLS UP TO 2018, WHETHER THEFT WAS COMMITTED, AND WHETHER THE RECOVERY OF RS. 5,69,763 UNDER THE CITATION DATED 10.10.2018 WAS VALID

The Court expressly recorded that it had not adjudicated the claim on merits, leaving the representation/objection to the Executive Engineer under Clause 6.8. ¶ 2-3, 8

NOT DECIDED — WHETHER CLAUSES 8.1–8.2 RATHER THAN CLAUSE 6.8 GOVERN A THEFT ASSESSMENT

The licensee alleged theft (spot inspection; compounding; bounced cheque). The Court keyed the remedy to Clause 6.8 without citing or distinguishing Clauses 8.1–8.2. ¶ 3-4